

TEST - 12
GENERAL STUDIES - 2
ASCEND - GS MAINS TEST SERIES 2024

Q1: "The Preamble serves as the soul of the Constitution." In this context, discuss the significance of the term "socialist" and "secular" in the Preamble of the Indian Constitution. (10 Marks, 150 Words)

Approach to the answer:

Introduction: Introduce in brief about preamble or 42nd constitutional amendment act.

Body: Address the demand of the question by writing in brief about how Preamble serves as the soul of the Constitution then address the main demand i.e. Significance of the terms "socialist" and "secular".

Conclusion: Conclude with a summarizing the topic on positive note.

Answer: The 42nd Amendment in 1976 added "socialist" and "secular" to the Preamble, reinforcing India's commitment to economic justice and religious equality & freedom.

Preamble is referred as the soul of the Constitution for several reasons:

- **Reflects Foundational Values:** such as – justice, liberty, equality, and fraternity. It provides a moral and philosophical foundation for the Constitution.
- **Expression of Sovereignty:** The Preamble begins with "We, the people," emphasizing that the power and authority of the government derive from the people, reaffirming the democratic essence of the Constitution.
- **Influences Constitutional Interpretation:** The Preamble has been used by the judiciary as a tool for interpreting ambiguous or contentious constitutional provisions, ensuring that the spirit of the Constitution aligns with its core values.
- **Historical Context:** The Preamble reflects the historical struggles and aspirations of the nation at the time of independence, making it a living document that continues to inspire and guide the Indian polity.

Significance of the terms "socialist" and "secular" in the Preamble of the Indian Constitution:

- **Socialist:** It emphasized that India's socialism advocates for a **mixed economy**, balancing private property rights with state intervention to promote public welfare and reduce inequality.
 - **Economic Justice: Articles 39(b) and 39(c)** reflect socialist ideals, focusing on equitable resource distribution and minimizing wealth concentration.
 - **Welfare State:** In **D.S. Nakara v. Union of India**, the Supreme Court emphasized socialism as ensuring a decent standard of living like education, healthcare and social security for all.
- **Secular:** Ensures that the State treats all religions equally, without favoring or discriminating against any religion. Thus, the state maintains an equal distance from all religions, ensuring that no religion is given preferential treatment.
 - **Religious Freedom: Articles 25 to 28** guarantee individual and institutional religious freedoms, maintaining a clear separation between religion and state.
 - **State Pluralism:** Secularism promotes the idea of unity in diversity, encouraging respect and tolerance among different religious communities.
 - ✓ **Articles 29 and 30** protect cultural and educational rights of minorities, supporting India's pluralistic society.

The terms "socialist" and "secular" in the Preamble ensures India's commitment to an inclusive society. They embody constitutional morality, guiding governance and helping in legal interpretations to uphold justice, liberty, equality, and fraternity.

Q2: Explain the doctrine of "limited government" and discuss the key constitutional provisions that establish the principle of limited government. (10 Marks, 150 Words)

Approach to the answer:

Introduction: Introduce in brief about limited government.

Body: Address the demand of the question by writing in brief about features of Limited Government followed by constitutional provisions of Limited government in the constitution of India.

Conclusion: Conclude with a summarizing the topic on a positive note.

Answer: The doctrine of "limited government" is a principle that asserts governmental power should be restricted by laws or a constitution to prevent arbitrary rule and protect individual freedoms.

Features of Limited Government:

- **Legal Constraints:** Government actions and authority are defined and restricted by a legal framework, such as a constitution, which outlines the limits of governmental power.
- **Separation of Powers:** The powers of government are divided among different branches—executive, legislative, and judicial – to prevent the concentration of power and ensure a system of checks and balances.
- **Protection of Rights:** Individual rights and liberties are safeguarded against government overreach, ensuring that the government cannot infringe upon personal freedoms without due process.
- **Accountability:** Government officials are accountable to the people and must operate within the bounds set by law, ensuring that their actions are subject to legal scrutiny and public oversight.

Provisions of Limited Government in the Constitution of India:

- **Rule of Law:** This principle ensures that government actions are based on established laws rather than arbitrary decisions.
 - For example, **Article 14** guarantees 'equality before the law,' reflecting the Rule of Law by ensuring that all individuals are treated equally and fairly.
- **Separation of Powers:** The Constitution divides the powers of the State into three branches: legislature, executive, and judiciary. This separation prevents the concentration of power in any single institution and establishes a system of checks and balances.
 - For example, **Article 121** bars Parliament from discussing judicial actions, reinforcing the separation between legislative and judicial functions.
- **Responsible Government:** In India, the Council of Ministers is collectively responsible to the Lok Sabha as per **Article 75(3)**.
 - Parliament holds ministers accountable through mechanisms like question hour, adjournment motions, and no-confidence motions.
- **Individual Rights:** Fundamental Rights, enshrined in Part III of the Indian Constitution protect citizens from arbitrary state actions.
 - **Article 32** provides for the enforcement of these rights through the Supreme Court which can issue writs to ensure justice and protection of individual liberties.
- **Independent Judiciary:** The judiciary plays a critical role in upholding the rule of law.
 - For example, the Supreme Court upheld judicial independence by striking down the 99th Constitutional Amendment Act, which sought to establish the National Judicial Appointment Commission (NJAC).
- **Principle of Popular Sovereignty:** The government's legitimacy derives from the people, as reflected in the phrase "We the people" in the Preamble. Thus, governmental powers are not absolute and are derived from the will of the people.

The Supreme Court, in the *IR Coelho v. State of TN* (2007) case, affirmed that the basic features of the Indian Constitution are intertwined with constitutionalism and limited government. A vigilant citizenry and robust institutions are essential for upholding the principles of limited government.

Q3: An independent judiciary serves as a pillar for upholding constitutional principles. Discuss with the help of relevant case laws. (10 Marks, 150 Words)

Approach to the answer:

Introduction: Introduce in brief about limited government.

Body: Address the demand of the question by writing in brief about features of Limited Government followed by constitutional provisions of Limited government in the constitution of India.

Conclusion: Conclude with a summarizing the topic on a positive note.

Answer: Judicial independence refers to the ability of courts and judges to carry out their duties without interference or control from other actors, whether governmental or private. It is essential for preserving democracy and upholding democratic values such as freedom, equality, equity, and justice.

The Constitution of India reinforces judicial independence through various provisions. For example, Article 121 prohibits the discussion of judges' conduct in Parliament, while the salaries and pensions of judges are charged to the Consolidated Fund of India, ensuring financial security.

Independence of Judiciary: A Pre-requisite for Democracy and Democratic Values

- **Upholding the Rule of Law:** Judicial independence ensures that all actions, including those of the government, adhere to legal principles and the Constitution, preventing arbitrary use of power.
 - For Example: In *Nandini Sundar and Others vs. State of Chhattisgarh*, the Supreme Court emphasized the rule of law as essential to democracy.
- **Safeguarding Individual Rights and Liberties:** An impartial judiciary is crucial for ensuring equal justice and protecting citizens from potential government abuses.
 - For Example: Landmark cases like *Kesavananda Bharati v. State of Kerala* and *Maneka Gandhi v. Union of India* highlight the judiciary's role in upholding fundamental rights against encroachments by the legislative or executive branches.
- **Safeguards Against Executive Tyranny:** Judicial independence acts as a defense against executive overreach, ensuring that governmental actions remain within legal and accountable bounds.
 - For Example: In the *Minerva Mills* case, judicial review served as a check on arbitrary executive actions, reinforcing democratic principles.
- **Ensuring Checks and Balances:** The judiciary's power of judicial review allows it to oversee the actions of the executive and legislature, ensuring no branch exceeds its constitutional authority.
 - For Example: Under Article 13, the judiciary can strike down any law deemed unconstitutional or arbitrary.
- **Improving Legislative Functioning:** By resolving disputes and clarifying legal ambiguities, the judiciary aids in developing a robust legal framework that supports democratic governance.
 - For Example: The Supreme Court's proactive approach in environmental protection cases, such as *MC Mehta*, has prompted legislative action and policy reforms, enhancing governance efficacy.

The Supreme Court, in the *Union of India v. Madras Bar Association* (2010) case, observed, "Impartiality, independence, fairness, and reasonableness in decision-making are the hallmarks of the judiciary. If 'impartiality' is the soul of the judiciary, 'independence' is its lifeblood."

Q4: How does fiscal decentralization strengthen cooperative federalism in India? Discuss with reference to the Finance Commission and GST Council. (10 Marks, 150 Words)

Approach to the answer:

Introduction: Introduce in brief about Cooperative federalism and Fiscal decentralization.

Body: Address the demand of the question by writing about how Fiscal Decentralization Strengthens Cooperative Federalism in India followed by role of Finance Commission and GST commission in Promoting Fiscal Decentralization.

Conclusion: Conclude with a summarizing the topic on a positive note.

Answer: Cooperative federalism refers to a system where both central and state governments work collaboratively to address political, social, and economic issues, ensuring balanced governance.

Fiscal decentralization plays a crucial role by redistributing fiscal responsibilities and promoting local decision-making to enhance governance effectiveness and responsiveness.

How Fiscal Decentralization Strengthens Cooperative Federalism in India

- **Empowers State Autonomy:** Fiscal decentralization grants states more control over resources, enhancing their ability to implement policies suited to local needs.
- **Revenue Sharing:** Mechanisms like the Finance Commission ensure states receive a share of central taxes, promoting intergovernmental cooperation and better fiscal management.
- **Promotes Regional Equity:** It addresses regional disparities by allocating more funds to economically weaker states, fostering balanced development. Example: Special grants to northeastern states.
- **Local Governance:** Fiscal decentralization through State finance commissions (SFCs) strengthens local governance by enabling regions to address specific issues with allocated funds.
- **Reduces Central Dependence:** States with higher fiscal autonomy rely less on central transfers, leading to more balanced Centre-State relations.
- **Strengthens Accountability:** With greater fiscal responsibility, states are more accountable to their citizens, leading to better governance outcomes.

Role of Finance Commission in Promoting Fiscal Decentralization

- **Equitable Resource Distribution:** The Finance Commission ensures a fair distribution of central taxes, empowering states to manage their finances effectively.
 - For example: The 14th Finance Commission increased states' share of central taxes to 42%, enhancing their fiscal capacity.
- **Special Grants and Assistance:** It provides special grants to states for specific needs, promoting regional equity and enabling targeted development.
 - For example: Grants for disaster management in vulnerable states like Odisha.
- **Addressing Fiscal Imbalances:** By recommending compensatory grants, the Finance Commission reduces fiscal disparities between states.

Role of GST Council in Promoting Fiscal Decentralization

- **Uniform Taxation Framework:** The GST Council provides a collaborative platform where states participate in tax policy decisions, promoting cooperative federalism.
 - For example: Consensus-based decisions on tax rates across states.
- **Compensation Mechanism:** The Council ensures that states are compensated for any revenue loss due to the implementation of GST, safeguarding their financial autonomy.
- **Inclusive Decision-Making:** With equal representation from the Centre and states, the GST Council embodies the spirit of cooperative federalism in fiscal matters.

Cooperative federalism in India can be further strengthened through enhanced fiscal federalism by ensuring more equitable resource distribution, encouraging state-led innovations, and empowering local governments.

Q5: The enactment of the Bharatiya Nyaya Sanhita (BNS) is a response to contemporary legal challenges in India. Comment (10 Marks, 150 Words)

Approach to the answer:

Introduction: Introduce in brief about Bharatiya Nyaya Sanhita (BNS).

Body: Address the demand of the question by writing about how Bharatiya Nyaya Sanhita (BNS) is a response to contemporary legal challenges in India

Conclusion: Conclude with a summarizing the topic on a positive note.

Answer: The Bharatiya Nyaya Sanhita (BNS), enacted on December 25, 2023, repeals and replaces the Indian Penal Code (IPC) of 1860. It came into effect on July 1, 2024, providing a transitional period for adaptation to the new legal framework.

Bharatiya Nyaya Sanhita (BNS) is a response to contemporary legal challenges in India in the following ways:

- **Decolonization of Laws:** The BNS 2023 replaces colonial-era laws, reflecting India's contemporary values and aspirations for a just society.
- **Streamlining Provisions:** By consolidating and reducing the number of sections from 511 in the IPC to 358, the BNS consolidates and simplifies the criminal law framework, improving legal clarity and accessibility.
- **Elimination of Obsolete Provisions:** The BNS removes certain provisions from the IPC, such as sedition, reflecting a shift towards protecting individual freedoms and enhancing the right to free speech.
- **New Offences:** The BNS introduces provisions for mob lynching, organized crime, financial crimes, cyber-crime and deceitful promises, addressing modern societal challenges effectively.
- **Gender Neutrality:** The BNS incorporates gender-neutral provisions, allowing equal legal accountability and reflecting contemporary societal norms surrounding gender issues.
- **Gender and Child Rights:** The BNS consolidates offenses against women and children into a single chapter to provide a more coherent approach to addressing such crimes.
- **Enhanced Penalties and Punishments:** Punishments for various offences have been revised, with enhanced penalties applied to 33 specific crimes, as well as increased fines for 83 offences under the new law.
 - This includes stricter penalties for causing death by negligence, which has increased from two years to five years of imprisonment.
- **Victim-Centric Approach:** It incorporates provisions that enhance victim protection, focusing on rehabilitation and compensation, which were inadequately addressed under the IPC.
- **Emphasis on Community Service:** Introducing community service as punishment for minor offences promotes rehabilitation over incarceration, easing prison overcrowding issues.

The Bhartiya Nyaya Sanhita (BNS) effective implementation relies on factors such as building capacity in law enforcement, robust monitoring, public awareness, etc. Without these BNS's potential to deliver justice may remain unrealized.

Q6: Discuss the rationale behind states reserving private sector jobs for locals. Also, highlight the constitutional challenges of implementing such reservations. (10 Marks, 150 Words)

Approach to the answer:

Introduction: Introduce in brief about Local reservation policies in the private sector.

Body: Address the demand of the question by writing about Rationale Behind Reserving Private Sector Jobs for Locals followed by Constitutional Challenges in Implementing Reservations.

Conclusion: Conclude with a summarizing the topic on a positive note.

Answer: Local reservation policies in the private sector, such as Karnataka's 2024 bill mandate significant job quotas for local residents in industries. Similar laws were introduced in Andhra Pradesh, Haryana, and Jharkhand.

Rationale Behind Reserving Private Sector Jobs for Locals

- **Boost Local Economy:** By reserving jobs for locals, states aim to stimulate the local economy by ensuring that income generated within the region benefits its residents.
- **Reduce Unemployment:** Local job reservations can help address regional unemployment and underemployment by providing opportunities to residents who may otherwise face barriers to employment.
- **Empower Marginalized Communities:** It can help uplift marginalized or economically disadvantaged communities within the state by providing them with better job opportunities.
- **Mitigate Urban Migration:** By providing employment opportunities in rural or less-developed areas, the policy aims to reduce excessive migration to urban centers, thereby alleviating pressure on city infrastructure and resources.
- **Reduce Social Tensions:** Ensuring local residents have access to job opportunities can reduce social tensions and grievances related to economic inequality and job competition.

Constitutional Challenges in Implementing Reservations for Locals in the Private Sector:

- **Article 14:** Domicile-based reservations for locals may violate Article 14 by creating unreasonable discrimination against non-locals, undermining the principle of equality before the law.
- **Article 16:** ensures equality of opportunity in public employment only.
- **Article 16(2):** Prohibits discrimination in public employment based on place of birth or residence. Extending this to the private sector could face legal scrutiny for violating equality of opportunity.
- **Article 19(1)(g):** Guarantees the right to practice any profession or trade. Mandating local reservations may infringe on this right by imposing unreasonable restrictions on businesses.
- **Article 19(2):** Allows reasonable restrictions on fundamental rights for public interest, but reservations in the private sector may not fit within these exceptions.
- **Federalism:** State-imposed reservations could conflict with the central government's jurisdiction over economic and labor policies, leading to federal disputes.
 - Such reservations may promote regionalism, potentially compromising fraternity, national unity, and integrity.
- **Indira Sawhney vs Union of India case:** capped reservations in public sector jobs at 50% in 1992. Legal experts suggest that this limit could also apply to private sector reservations.

For equitable and sustainable economic growth, it is essential to balance addressing local issues with maintaining an open and merit-based labor market. Policymakers must carefully weigh the potential trade-offs and unforeseen consequences of such measures.

Additional Information:

Implications of Private Sector Reservation

- **Delaying Economic Recovery:** The pandemic has highlighted the need for rapid economic recovery. Mandating local employment might compromise the quality of the workforce and slow down this

recovery.

- **Discouraging Investment:** Job reservation requirements can reduce company competitiveness and deter potential investors, affecting the state's economic growth.
- **Threat to Unity and Integrity:** Reservation policies might create friction between locals and non-locals, undermining India's foundational principle of Unity in Diversity.
- **Feasibility Issues:** If there is a shortage of qualified local workers, implementing job reservations could force companies to seek bureaucratic approvals, resembling the outdated Inspector Raj system.

Q7: Examine the impact of microfinance on women empowerment and its contribution in reducing poverty and unemployment in India. (10 Marks, 150 Words)

Approach to the answer:

Introduction: Introduce in brief about Microfinance.

Body: Address the demand of the question by writing about how microfinance addresses poverty and unemployment and then highlight the challenges faced by Microfinance.

Conclusion: Conclude with a summarizing the topic on a positive note or with a way forward.

Answer: Microfinance refers to small loans and other financial services designed specifically for poor and low-income households. It aims to promote financial inclusion, empower marginalized communities, and reduce poverty and unemployment in India.

The Reserve Bank of India (RBI) defines microfinance as any collateral-free loan provided to a borrower with an annual household income of up to ₹3 lakh, with repayment obligations during the year capped at 50% of the annual household income.

Microfinance aims to challenges of poverty and unemployment:

- **Boosting Income-Generating Activities:** Microfinance increases income-generating activities among the poor.
 - For example, in Bangladesh, the Grameen Foundation has empowered women to escape poverty by supporting ventures such as tailoring and weaving.
- **Women Empowerment:** By giving women access to credit, microfinance empowers them economically and socially, which also improved women's participation in decision-making.
- **Building Resilience:** Microfinance helps the poor build resilience against unexpected economic shocks or health emergencies, protecting them from falling back into poverty.
- **Access to Institutional Credit:** By providing access to institutional credit, microfinance enables the poor to escape the clutches of money lenders.
- **Rural Employment:** Microfinance has supported rural employment through agriculture and allied activities, reducing migration, particularly in states like Andhra Pradesh.
- **Social Capital Formation:** SHGs in Bihar have fostered community solidarity, leading to collective economic activities and improving social capital, which in turn enhances economic stability.

Despite its advantages, microfinance also faces several challenges:

- **High-Interest Rates:** The high-interest rates associated with microfinance loans can create significant social pressure and shame in the event of default, leading to issues like secondary debt and, in extreme cases, suicides.
- **Cultural Barriers:** Microfinance often operates within a patriarchal system. For example, microfinance funds may be used to send husbands or sons abroad for work, leaving women burdened with the debt.
- **Non-Productive use of Loans:** Many microfinance loans are diverted to non-income-generating purposes, such as dowry payments or settling unpaid debts.
- **Low Penetration in Rural Areas:** Microfinance penetration remains low in rural India, with a noticeable regional divide, particularly in the eastern parts of the country.

- **Over-Indebtedness:** Many borrowers tend to take out loans from multiple sources due to immediate financial needs, leading to over-indebtedness. This situation poses a risk for both borrowers and MFIs, as it increases default rates.

By addressing these obstacles and leveraging its potential, microfinance can lead to transformative socio-economic changes, fostering a more inclusive society. Improving regulations and expanding outreach can enhance its impact on reducing poverty and unemployment.

Q8: 'Foreign higher educational institutions (FHEIs) will internationalize Indian higher education.' In this context, discuss the potential benefits and challenges of allowing FHEIs to establish campuses in India.

(10 Marks, 150 Words)

Approach to the answer:

Introduction: Introduce in brief about recent guidelines related to Foreign higher educational institutions or NEP take on FHEIs.

Body: Address the demand of the question by writing about Benefits of Foreign Higher Educational Institutions (FHEIs) in India followed by associated challenges.

Conclusion: Conclude with a summarizing the topic on a positive note or with a way forward.

Answer: Recently, the UGC released regulations for setting up of campuses of Foreign Higher Educational Institutions (FHEIs) in India in line with the vision of the National Education Policy (NEP) 2020.

Benefits of Foreign Higher Educational Institutions (FHEIs) in India

- **Enhanced Education Quality:** Introduction of international curriculum standards is expected to improve education quality, increase the Gross Enrolment Ratio (GER), enhance global competence, and boost the pool of skilled workers. It can also prevent brain drain and contribute to brain gain as Indian-origin academicians may return, helping India leverage its demographic dividend.
- **Stimulating Domestic Institutions:** The presence of FHEIs can drive domestic public and private institutions to elevate their standards and foster healthy competition. It encourages knowledge spillovers through faculty and research collaborations, promotes the growth of a knowledge economy, and supports the globalization of higher education in India.
- **Economic and Cultural Impact:** FHEIs can reduce foreign exchange outflows (\$60 billion), attract foreign students, and increase forex inflows. They also offer opportunities for cultural exchanges, helping to build India's soft power.

Challenges of Foreign Higher Educational Institutions (FHEIs) in India:

- **Regulatory Issues:** The regulations may not fully align with the NEP framework, including issues like bypassing the legislative route and vague terminology such as "institution of repute" and "national interest." The requirement for reapproval every 10 years could create bureaucratic obstacles.
- **Commercialization and Access:** An unregulated fee structure might lead to greater commercialization of education, potentially making FHEIs elite spaces that could widen access disparities. The future of reservation policies remains uncertain.
- **Incentives and Implementation:** FHEIs often require substantial incentives like land, which might otherwise be used to improve existing public universities. Foreign institutions may be reluctant to establish campuses in India due to challenges in transferring their ethos and the possibility that students might still choose to study abroad for better career prospects.

Encouraging foreign institutions in India is a positive development. Drawing from the South Korean model, which involves partnerships with existing Indian universities (e.g., Incheon Global University Complex), could offer a more effective approach for integrating FHEIs into India's higher education landscape.

Q9: Discuss the challenges and opportunities for India and the EU in strengthening their relationship amidst the changing global strategic environment. (10 Marks, 150 Words)

Approach to the answer:

Introduction: Introduce in brief about recent guidelines related to Foreign higher educational institutions or NEP take on FHEIs.

Body: Address the demand of the question by highlighting changing global strategic environment then mention challenges and opportunities in India-EU relations.

Conclusion: Conclude with a summarizing the topic on a positive note.

Answer: India and European Union share common values and principles such as democracy, rule of law, rules based international order and multilateralism. The ties are multifaceted and cover a broad spectrum of topics including trade, investment, climate change, science and technology, digital, connectivity and agriculture.

Changing global strategic environment:

- USA primacy being challenged by a revisionist China.
- Trade Wars between USA and China and further impediments due to Western sanctions over Russia and Russia's weaponization of its energy exports.
- Ukraine conflict and concerns about it expanding to other European nations.
- In East Asia, tensions across Taiwan strait and geopolitical contestations in the Indo-Pacific.
- Russia-China "No-Limits Partnership" and their shared animosity towards West and contemporary global order.

Challenges in India-EU Relations:

- Differing stance over Ukraine Crisis: While EU has taken strident Anti-Russia stance, India has not criticized Russia openly. Moreover, while EU looks at Russia as a threat, for India, Russia is a reliable partner.
- Lack of FTA between EU and India and Broad-based Trade and Investment Agreement (BTIA), remain stuck.
- Rather than engaging with EU as a whole, India prefers engaging with Individual nations like Germany and France.
- EU comments over India's internal issues and Human Rights issues are seen as undue interference by India.
- European nations' inability to crack down on Khalistan sympathizers and other Anti-India elements is another bone of contention.
- On trade, both India and EU are generally in opposite side at WTO and other forums.
- On climate Change, EU has always demanded greater commitments from India, without considering India's own developmental needs.

Opportunities:

- Shared vision for a multipolar global order beyond US' unipolarity or US-China bipolarity.
- Shared threat about China and need for hedging against dependence on China. India and EU economies enjoy complementarity in this regard.
- Opportunity for multilateral cooperation in post-pandemic economic recovery, climate change, sustainable development, innovation, digitalization, and green and clean growth.
- **Investment**-Nordic countries have sovereign wealth funds. India invited Nordic companies to invest in the Blue Economy sector, especially in India's Sagarmala project.
- **Defence**-Sweden provides for cooperation in defence manufacturing sector.
- **Maritime sector**-Cooperation on sustainable ocean management.
- **Finland**-Expanding cooperation in the fields of new and emerging technologies like AI, quantum computing, future mobile technologies, clean technologies and smart grids

Though both sides have resumed the negotiations for BTIA, Economic complementarities and geostrategic convergences call for India and EU to sign it quickly. Both sides need to address mutual concerns and

understand each other's geopolitical compulsions and sensitivities. A strong EU-India partnership can act as an anchor for a world threatened by US-China tension and a multipolar order.

Q10: 'Soft Power plays an important role in International relations.' In this context, enumerate the steps taken by the government to expand India's soft power across the globe. (10 Marks, 150 Words)

Approach to the answer:

Introduction: Introduce in brief about soft power.

Body: Address the demand of the question by highlighting importance of soft power in international relations followed by steps taken by the government to expand India's soft power.

Conclusion: Conclude with a summarizing the topic on a positive note.

Answer: Soft power is a concept in international relations that refers to the ability of a country to influence others through cultural, ideological, and diplomatic means rather than through coercion or force. The concept was popularized by Joseph Nye in the late 20th century.

Importance of Soft Power in International relations

- **Enhancing Global Influence:** Soft power allows countries to spread their culture, values, and ideals, which can foster goodwill and influence the global public opinion in favour of their policies. E.g. global appeal of American movies, music, and technology.
- **Strengthening alliances and partnerships:** Soft power facilitates the building of strong diplomatic relationships and alliances. Nations that are seen as attractive and culturally influential are more likely to find willing partners and allies in the international community.
- **Ensuring peace and stability:** By fostering mutual understanding and respect through cultural exchange and dialogue, soft power can reduce misunderstandings and tensions between nations, contributing to peace and stability.
- **Economic Benefits:** Countries with significant soft power can attract foreign direct investment, tourism, and skilled labour. Nations perceived as stable, welcoming, and culturally vibrant are often more appealing to investors and tourists.
- **Improving National Image:** Soft power can be used to counter negative stereotypes and improve a country's image abroad.

Steps taken by the government to expand India's soft power:

- International Day of Yoga was recognized by the United Nations in 2014 and celebrated annually on June 21.
- The Indian Council for Cultural Relations (ICCR) promotes Indian culture abroad through cultural exchanges, performances, exhibitions, and scholarships.
- International promotion of Bollywood and Indian cinema through film festivals, cultural events, and collaborations with foreign film industries.
- Public diplomacy initiatives like the "India Perspectives" magazine, social media outreach, and digital diplomacy to engage with global audiences and promote India's image abroad.
- Engagement with Indian Diaspora through initiatives like the Pravasi Bharatiya Divas and the Overseas Citizenship of India (OCI) scheme.
- Various scholarship programs for international students, such as the Indian Technical and Economic Cooperation (ITEC) program and ICCR scholarships, attracting students from developing countries to study in India.
- Providing development assistance to various countries, particularly in South Asia, Africa, and the Indian Ocean region.
- The "Incredible India" campaign has been a significant soft power initiative, showcasing India's cultural diversity, historical heritage, and natural beauty to attract international tourists.

Through these multifaceted initiatives, the Government of India has successfully expanded its soft power on the global stage to enhance its influence and foster positive international relations.

Q11: Highlight various parliamentary privileges and discuss how the lack of codification complicates their interpretation and application. Also, suggest measures to codify these privileges. (15 Marks, 250 Words)

Approach to the answer:

Introduction: Introduce in brief about parliamentary privileges.

Body: Address the demand of the question by highlighting various parliamentary privileges followed by Problems with the absence of codification. Also, Suggest measures to ensure codification.

Conclusion: Conclude with a summarizing the topic on a positive note.

Answer: Parliamentary privileges are specific rights and immunities granted to members of Parliament to enable them to effectively perform their duties. These privileges are outlined in the Constitution (Article 105 for Parliament and Article 194 for State Assemblies).

Various Parliamentary Privileges Include:

- **Freedom of Speech:** Members enjoy freedom of speech and expression within the House and its Committees. They cannot be prosecuted or discriminated against for their statements made in these forums.
- **Freedom from Arrest:** Members cannot be arrested in civil cases 40 days before or after the adjournment of the House, or while the House is in session. Arrest within Parliament precincts requires the House's permission.
- **Exemption from Attendance as Witnesses:** Members are not required to attend court as witnesses, protecting them from legal obligations that might interfere with their legislative duties.
- **Right to Publish Debates and Proceedings:** Parliament/Assembly can restrict press access to its proceedings if necessary, maintaining control over the dissemination of sensitive information.
- **Right to Exclude Strangers:** This privilege allows the exclusion of non-members to prevent disruptions and protect the proceedings from external interference.
- **Right to Punish Members and Outsiders:** The Parliament/Assembly has the authority to penalize members and outsiders for contempt of the House, ensuring order and respect within the legislative process.

Problems with the absence of codification:

- **Freedom of Speech Violation:** Non-codification of parliamentary privileges leads to confusion and infringes on freedom of speech and expression. For example, The Hindu case (2003) involved misuse of privileges leading to media and individual prosecutions.
- **Uncertainty and ambiguity:** The lack of clear definition regarding the scope and limits of privileges can lead to confusion and disputes.
- **Potential for misuse:** The undefined nature of privileges can create loopholes for members to claim immunity for actions, leading to accusations of a "privileged class."
- **Public accountability:** The opacity surrounding uncoded privileges can hinder public scrutiny and accountability, raising concerns about transparency and fairness.

Measures to Codify Privileges and Strengthen Democratic Framework:

- **Legislative Enactment:** Introduce a comprehensive Parliamentary Privileges Act to provide clear definitions and boundaries for parliamentary privileges, reducing ambiguity.
 - **Constitution Review Commission (Justice M.N. Venkatachaliah)** Suggested defining and limiting privileges to strengthen legislative independence and clarity.
- **Regular Reviews and Amendments:** Establish a committee to review and update privilege-related laws periodically to keep the legal framework responsive to evolving democratic needs.
- **Transparency Mechanisms:** Implement transparency measures, such as public disclosure of privilege-related decisions and actions.
- **Judicial Oversight:** Create provisions for judicial review of privilege-related disputes.
- **Independent Oversight Body:** Establish an independent body to oversee and address privilege-related issues. This will provide an impartial platform for resolving conflicts and ensuring fair application of privileges.

- **International Perspective:**

- **England:** The English Parliament has shifted away from treating past acts and statements as issues of privilege.
- **Australia:** In 1987, Australia codified parliamentary privileges, providing a clear and structured framework.

Comprehensive codification of parliamentary privileges is vital to maintain democratic integrity, ensuring Parliament remains a model of accountability rather than a realm of unchecked power.

Q12: “An independent judiciary plays important role in upholding constitutional democracy in India.” In this context, discuss how executive encroaches on independence of the judiciary in India and suggest measures to preserve judicial autonomy. (15 Marks, 250 Words)

Approach to the answer:

Introduction: Introduce in brief about Independent Judiciary.

Body: Address the demand of the question by highlighting significance of Independent Judiciary followed by how Executive encroaches undermine judicial independence then suggest measures.

Conclusion: Conclude with a summarizing the topic on a positive note.

Answer: The judiciary is a vital pillar of democracy, tasked with interpreting the Constitution, the fundamental law of the land. The Constitution envisions an independent judiciary under various provisions such as Article 50 and Article 124. An independent judiciary is crucial for maintaining constitutional democracy and has several key functions:

Significance of an Independent Judiciary

- **Checks and Balances:** The judiciary acts as a guardian of constitutional values, preventing excesses by the executive and overreach by the legislature. For instance, judicial review helps ensure that actions by other branches of government adhere to constitutional principles.
- **Progressive Realization of Rights:** Through various interventions, the judiciary has expanded the scope of constitutional rights and promoted constitutional morality.
 - Notable cases include the Navtej Singh Johar case, which decriminalized homosexuality, and the Sabarimala case, which addressed gender discrimination.
- **Judicial Activism:** The judiciary often steps in to fill policy gaps left by legislative or executive inaction, ensuring comprehensive justice as per Article 142.
 - Examples include judgments on the appointment of the Chief Election Commissioner and the innovative use of Public Interest Litigation (PIL).
- **Dispute Resolution:** The judiciary provides a forum for resolving disputes among individuals, organizations, and government entities, ensuring the smooth functioning of democracy.
 - For example, Article 131, addresses federal disputes.
- **Writ Jurisdiction:** Under Articles 32 and 226, the Supreme Court and High Courts can issue writs such as mandamus and habeas corpus to protect against rights violations.

Executive encroachment can undermine judicial independence in several ways:

- **Perceived Bias:** When the judiciary is perceived as favoring the executive, it erodes public trust.
 - For example, judgments perceived as favorable to post-retirement benefits can harm the judiciary's reputation.
- **Appointment Delays:** Delays by the executive in appointing judges recommended by the collegium can undermine judicial performance and exacerbate vacancies, especially in high courts.
- **Legislative Encroachment:** Attempts by the legislature to overturn judicial decisions can undermine judicial authority.
 - Examples include the controversies surrounding the Enforcement Directorate's chief tenure and the Shah Bano case.

- **Tribalization of Justice:** Shifting adjudication to tribunals managed by the executive can blur the lines of separation of powers, making the executive part of its own adjudication process.

Measures to Safeguard Judicial Independence

- **Respecting Court Decisions:** The executive should uphold and comply with court rulings, even if there are disagreements, to reinforce the rule of law.
- **Judicial Transparency:** The judiciary should enhance transparency by voluntarily disclosing collegium decisions and considering inclusion under the Right to Information (RTI) Act.
- **Modernization and Collaboration:** Both the executive and judiciary should collaborate on modernizing the judicial system to address issues like case pendency. Initiatives such as the Inter-operable Criminal Justice System and the All-India Judicial Services can be beneficial.

The judiciary and executive, as key pillars of democracy must respect the separation of powers and engage in constructive dialogue to resolve key differences. Maintaining Judicial independence is crucial for upholding democratic values and ensuring fair and effective governance.

Q13: Examine the key provisions of 'The Chief Election Commissioner and other Election Commissioners (Appointment, Conditions of Service and Term of Office) Act, 2023'. How do these provisions impact the independence of the Election Commission of India? (15 Marks, 250 Words)

Approach to the answer:

Introduction: Introduce in brief about recent act related to it.

Body: Address the demand of the question by highlighting major provisions of the act followed by its impact on the independence of ECI.

Conclusion: Conclude with a summarizing the topic on a positive note.

Answer: Parliament recently passed the Chief Election Commissioner and Other Election Commissioners (Appointment, Conditions of Service, and Term of Office) Act, 2023. This Act establishes procedures for appointing the Chief Election Commissioner (CEC) and Election Commissioners (ECs), and outlines their salary, conditions of service, and removal.

Major Provisions of the Act:

- **Appointment:** The CEC and ECs are appointed by the President based on recommendations from a Selection Committee.
- **Selection Committee:** This committee includes the Prime Minister, a Union Cabinet Minister, and the Leader of the Opposition or the leader of the largest opposition party in the Lok Sabha.
- **Conditions:** The Selection Committee's recommendations remain valid even if there is a vacancy within the Committee.
- **Search Committee:** A Search Committee, led by the Cabinet Secretary, will propose a panel of names to the Selection Committee.
- **Eligibility Criteria:** The CEC and ECs must be individuals of integrity, with experience in election management, and must have held the position of Secretary (or equivalent) to the government.
- **Salary and Conditions of Service:** The salary and conditions of service for the CEC and ECs will be on par with those of a Supreme Court Judge.

Impact on the Independence of the ECI:

Adverse Impact:

- **Government Domination:** The Selection Committee is dominated by government members, with two out of three members from the executive.
- **Monopoly in Selection:** The validity of recommendations despite a vacancy in the Selection Committee could lead to government dominance in the selection process.

- **Contradiction with SC Judgment:** The Act contradicts the 2023 Supreme Court judgment (Anoop Baranwal v. Union of India), which mandated that the CEC and ECs be appointed by a committee including the Prime Minister, Chief Justice of India (CJI), and Leader of the Opposition.
- **Disparity in Removal:** Under Article 324 of the Constitution, the CEC can only be removed similarly to a Supreme Court judge, whereas an EC can be removed upon the CEC's recommendation, creating a disparity in removal procedures.
- **Bypassing the Search Committee:** The Selection Committee may choose candidates beyond those proposed by the Search Committee, potentially leading to the appointment of political favorites and undermining the role of the Search Committee.

Positive Impact:

- **Previous Appointment Process:** Before this Act, the President made appointments solely based on the advice of the Union Council of Ministers led by the Prime Minister.
- **Salary Parity with Supreme Court Judges:** The Act ensures the CEC and ECs' salaries are equivalent to those of Supreme Court judges, reinforcing their independence.
- **Safeguards for CEC and ECs:** The Act protects CEC and ECs from legal proceedings related to actions taken during their official duties, shielding them from undue influence.

Dr. B.R. Ambedkar emphasized that truly free elections must be independent of the government. Ensuring the Election Commission of India's independence is essential for free and fair elections. While the Act has some provisions that support this independence, amendments are needed to strengthen it further.

Q14: Highlight the provisions of the Representation of the People Act 1951 designed to ensure candidates have clean antecedents and evaluate their effectiveness in addressing the criminalization of politics in India. (15 Marks, 250 Words)

Approach to the answer:

Introduction: Introduce in brief about criminalization of politics.

Body: Address the demand of the question by highlighting Provisions under the RPA 1951 in ensuring Clean Antecedents of Candidates followed by Effectiveness and limitations of these provisions.

Conclusion: Conclude with a summarizing the topic on a positive note.

Answer: According to ADR report, 34% or 185 out of 543 MPs in the 17th Lok Sabha are facing criminal charges including charges of very serious nature like Murder, attempt to murder, kidnapping etc. The Representation of the People Act, 1951 (RPA 1951) governs the conduct of elections and the qualifications and disqualifications of candidates. This helps in keeping the process of elections free and fair.

Provisions under the RPA 1951 in ensuring Clean Antecedents of Candidates:

- **Section 8:**
 - **8(1):** Disqualifies candidates convicted of specific offences such as promoting enmity between groups, bribery, and undue influence during elections.
 - **8(2):** Disqualifies candidates convicted of offences related to hoarding, profiteering, and adulteration of food or drugs.
 - **8(3):** Disqualifies candidates sentenced to imprisonment for not less than two years. Disqualification lasts for six years after their release.
 - **8A:** Disqualifies candidates for engaging in corrupt practices during elections.
- **Section 9:**
 - **9(1):** Disqualifies government servants dismissed for corruption or disloyalty to the state for five years.
 - **9A:** Disqualifies candidates with certain contracts with the government.
- **Section 10:** Disqualifies individuals holding offices under a government company from contesting elections.

- **Section 10A:** Disqualifies candidates who fail to submit their election expense accounts within the stipulated time.
- **Section 33A:** Requires candidates to disclose criminal antecedents in their election affidavits.
- **Section 125A:** Punishes candidates who fail to furnish required information or provide false information with imprisonment of up to six months, a fine, or both.
- **Section 123:** Defines corrupt practices, including bribery, undue influence, and promoting enmity based on race, religion, caste, or language.

Effectiveness of Provisions in Combating Criminalization of Politics:

- **Framework for Elections:** The Representation of People Act, 1951, establishes a legal framework for conducting elections, promoting transparency and fairness.
- **Disqualification:** Section 8 disqualifies candidates convicted of serious offenses, preventing criminal elements from holding public office.
- **Increased Transparency:** The mandatory disclosure of criminal records in affidavits has led to greater transparency, allowing voters to make informed choices.
- **NOTA:** The 2013 amendment introduced the NOTA option, empowering voters to reject all candidates.
- **Party Registration:** The Act regulates political party registration, promoting accountable political participation.
- **Electoral Rights:** Electoral offenses like bribery are defined to protect voters' rights and ensure election integrity.
- **Amendments:** The Act evolves with amendments like VVPAT, adapting to contemporary electoral challenges.

Limitations of the RPA 1951:

- **Increasing Criminal Candidates:** Despite RPA provisions, 43% of winners in the 17th Lok Sabha had declared criminal cases.
- **Delayed Convictions:** Slow judicial processes allow politicians with criminal charges to contest elections, as seen in the 18-year delay in a former Bihar CM's conviction.
- **Circumvention of Disclosure:** Candidates exploit loopholes by submitting incomplete affidavits, avoiding full disclosure of criminal records.
- **Influence of Electoral Dynamics:** Factors such as vote-bank politics, caste-based voting, and public perceptions can undermine the effectiveness of RPA provisions in preventing criminalization.

Strengthening the judicial process, improving voter education, Comprehensive electoral reforms, including state funding of elections, promoting internal party democracy, and enforcing strict timelines for the disposal of criminal cases are crucial steps needed to combat this problem effectively.

Q15: Despite the 74th Constitutional Amendment Act, urban governance has not achieved significant improvements on the ground. Enumerate the reasons for this and suggest measures to improve the situation. (15 Marks, 250 Words)

Approach to the answer:

Introduction: Introduce in brief about 74th constitutional amendment act.

Body: Address the demand of the question by highlighting Constitutional provisions for urban planning and governance followed by challenges and measures.

Conclusion: Conclude with a summarizing the topic on a positive note.

Answer: The 74th Constitutional Amendment Act of 1992 marked a significant step in strengthening urban governance in India by empowering municipalities. It aimed to decentralize power, enhance local self-governance, and improve the efficiency and accountability of urban administration.

Constitutional provisions for urban planning and governance include:

- **District Planning Committee:**
 - **Article 243ZD** mandates the formation of a district planning committee by state legislatures.
 - These committees consolidate plans from panchayats and municipalities.
- **Metropolitan Planning Committee:**
 - **Article 243ZE** provides for a Metropolitan Planning Committee in every metropolitan area.
 - The committee chairs forward development plans to state governments.

Challenges Despite Constitutional Backing:

- **Lack of Specialized Training:** Inadequate local capability and training affect urban planning, causing issues like poor solid waste management and water crises.
- **Bureaucratic Apathy:** Power struggles between elected officials and bureaucrats lead to inefficiencies, such as the indifference of municipal commissioners.
- **Corruption:** Issues like the collapse of the Morbi bridge highlight corruption at the local level.
- **Limited Technological Use:** Insufficient technological adoption and preparedness contribute to unplanned urbanization, pollution, slum proliferation, and urban floods.
- **Administrative Bottlenecks:** Problems like inadequate finances and delayed elections hinder effective urban governance.
- **Poor Devolution of Powers:** Insufficient devolution under the 12th Schedule limits the effectiveness of the 74th Constitutional Amendment Act.

Measures to Improve Urban Governance:

- **Re-engineering Urban Governance:** Define roles and responsibilities clearly, emulate self-reliant Scandinavian governance model, and enhance power devolution, as seen in Kerala's 40% budget allocation.
- **Citizen Engagement:** Incorporate public feedback into planning processes, such as managing urban amenities and grievance redressal under schemes like AMRUT.
- **Professional Training:** Ensure urban planning is undertaken by qualified professionals, supported by training modules from universities.
- **Successful PPP Programs:** Develop public-private partnerships for city development at state and city levels.
- **Financial Empowerment:** Reimagine municipal financing, including municipal bonds and integration with schemes like NIP, National Asset Monetisation, and Gatishakti masterplan.

Strengthening urban local governance and planning is essential for achieving self-sufficient, resilient, and inclusive cities, aligning with SDG 11 by adopting global best practices.

Q16: Accountability and Participation contribute to the successful implementation of welfare schemes in India. Discuss. Also, suggest ways to strengthen these principles. (15 Marks, 250 Words)

Approach to the answer:

Introduction: Introduce about Accountability and Participation in governance.

Body: Address the demand of the question by highlighting several hurdles hindering the effectiveness of these schemes and importance of Importance of Accountability and Participation.

Conclusion: Conclude with a summarizing the topic on a positive note or with a way forward.

Answer: Accountability and community participation are crucial in ensuring the effective implementation of welfare schemes. These principles foster transparency, efficiency, and responsiveness, leading to better outcomes and increased trust in the system.

Several hurdles hinder the effectiveness of these schemes:

- **Widespread Corruption:** Corruption undermines the socio-economic objectives of welfare schemes. Former Prime Minister of India noted that only 15 paise of every rupee reaches the intended beneficiary.

- **Limited Public Participation:** Weak feedback mechanisms, ineffective grievance redressal systems, and limited involvement of local bodies hinder successful implementation.
- **Bureaucratic Inefficiencies:** Delays and red tape in administration slow down the implementation and delivery of welfare services.
- **Targeting Errors:** Inaccurate identification of beneficiaries results in resources being diverted to non-eligible individuals.
- **Resistance to Change:** Cultural and social barriers often hinder the adoption of welfare measures, especially in conservative or marginalized communities.

Importance of Accountability and Participation:

- **Participation:**
 - **Citizen Involvement:** Engaging citizens in the formulation of welfare schemes enhances their utility and acceptability. For instance, involving labor unions while framing labor codes ensures that the schemes are more aligned with the needs of the people.
 - **Strengthening Democracy:** Participatory schemes complement democratic traditions and reduce centralism. Involving local bodies can decrease bureaucratic centralism, making schemes more effective and inclusive.
 - **Transformative Approach:** A participatory approach shifts citizens from being mere beneficiaries to becoming equal partners in the development process.
 - **Improves Monitoring:** Community participation in monitoring helps identify issues early and ensures timely corrective actions.
 - **Strengthens Ownership:** When communities are involved, they take greater ownership of schemes, leading to more sustainable outcomes.
- **Accountability:**
 - **Corruption Prevention:** Increased accountability reduces the scope for corruption and pilferage in welfare schemes. For example, regular social audits can ensure that resources reach the intended beneficiaries.
 - **Transparency:** Accountability enhances transparency in both the formulation and implementation of schemes, ensuring that the processes are fair and just.
 - **Effective Feedback and Grievance Redressal:** Accountability also facilitates better feedback processing and timely grievance redressal, thereby improving the overall efficacy of the schemes.
 - **Improves Service Delivery:** Regular monitoring and evaluation ensure that the schemes are implemented as intended.
 - **Increases Public Trust:** Accountability builds confidence in the system, encouraging beneficiaries to utilize services.

Measures to Improve Implementation:

- **Reduce Bureaucratic Red Tape:** Simplifying processes and reducing documentation requirements, as needed in schemes like PMMVY, can improve accessibility and efficiency.
- **Leverage Technology:** Real-time tracking of scheme implementation through big data and technological interventions, such as the Pragati portal and dashboards for aspirational districts, can enhance transparency and accountability.
- **Enhance Government Convergence:** Strengthening the convergence between different government initiatives, as seen in the Gatishakti masterplan and Samagra Shiksha Abhiyan, can create synergies and improve outcomes.
- **Empower Local Bodies:** Increasing the role of local bodies in the formulation, implementation, and appraisal of schemes ensures that they are more relevant to the needs of the community.
- **Minimize Middlemen:** Direct Benefit Transfer (DBT) initiatives like PAHAL can reduce the number of intermediaries, ensuring that benefits reach the intended recipients more efficiently.

Welfare schemes provide a lifeline for millions of impoverished and vulnerable citizens, helping them secure an equitable share in the country's growth. For these schemes to succeed, the principles of participation and accountability must be reinforced through collaborative efforts among citizens, government, and civil society.

Q17: Discuss the characteristics of Civil Society Organizations (CSOs) and how they complement government efforts in the governance and developmental process in India. (15 Marks, 250 Words)

Approach to the answer:

Introduction: Introduce in brief about Civil Society Organizations (CSOs).

Body: Address the demand of the question by highlighting Symbiotic Relationship between CSOs and Government followed in regulating CSOs.

Conclusion: Conclude with a summarizing the topic on a positive note or with a way forward.

Answer: Civil Society Organizations (CSOs) are non-governmental groups where individuals organize to pursue shared interests in the public domain. They include NGOs, community groups, and advocacy organizations, working to represent citizen interests and contribute to governance and development.

Symbiotic Relationship between CSOs and Government:

- **Wider Coverage:** CSOs bridge the gap by reaching sections of society often untouched by state projects.
 - For example, During the COVID-19 crisis Goonj Foundation delivered essential supplies to migrant workers.
- **Ending Exploitation:** CSOs played an important role in ending exploitation of weak and vulnerable sections of society.
 - Organizations like Bachpan Bachao Andolan combating child labour and human trafficking in India.
- **Social Development:** CSOs provide feedback and conduct performance audits of government development policies.
 - For example, Pratham's Annual Status of Education Report (ASER) highlights disparities in education, prompting corrective action.
- **Last-Mile Development:** CSOs often work at the grassroots level, reaching remote communities where government presence is limited.
 - The NGO Barefoot College in Rajasthan trains local women as solar engineers, providing sustainable energy to villages without electricity and contributing to SDGs like zero hunger and zero poverty.
- **Voice of the Voiceless:** CSOs give marginalized sections of society a platform, often enjoying greater public trust than government officials.
 - For example, the role of the NGO Naz Foundation in the decriminalization of homosexuality in India.

Challenges and Need for Regulation of CSOs:

- **Credibility and Accountability Issues:** CSOs often lack standardized evaluation parameters, leading to questions about their accountability and credibility.
- **Undermining Development:** Some NGOs are accused of organizing agitations that disrupt development projects, potentially costing India's GDP 2-3% annually.
- **Corrupt Practices:** Many NGOs lack transparency in operations and funding. This opacity raises concerns about potential money laundering and funding illegal activities like Naxalism and arms trade.
- **Foreign Influences:** Unchecked foreign funding can lead to international interference and impact domestic policy and political discourse, as seen in the "toolkit" controversy during the 2020 Red Fort riots.
- **Misgovernance:** Many CSOs in India have poor governance practices; for example, the CBI found that less than 10% of registered NGOs filed audited accounts.
- **Religious and Cultural Encroachment:** Some CSOs have pushed vested interests and promoted religious conversions, leading to actions like the government banning "Compassion International" from funding Indian NGOs.

To further improve the regulation of CSOs, a rating system could be established to acknowledge their work, and the suggestions of the Vijay Kumar Committee could be considered in this regard.

Q18: Analyse how bureaucratic inertia and systemic bottlenecks hinder the efficiency of the Civil Service and suggest measures to address these challenges. (15 Marks, 250 Words)

Approach to the answer:

Introduction: Introduce in brief about Indian Civil Service.

Body: Address the demand of the question by highlighting how Bureaucratic inertia and systemic bottlenecks impede the efficiency of the Civil Service.

Conclusion: Conclude with a summarizing the topic on a positive note or with a way forward.

Answer: The Indian Civil Service is often referred to as the "steel frame" of the country, reflecting its crucial role in strengthening the administrative structure and ensuring the effective delivery of public services.

Bureaucratic inertia and systemic bottlenecks can significantly hinder the efficiency of the Indian Civil Service. Despite its crucial role in governance and public service delivery, these issues impact its effectiveness.

Bureaucratic inertia and systemic bottlenecks impede the efficiency of the Civil Service:

- **Bureaucratic Inertia:**
 - **Resistance to Change:** Bureaucratic practices resist modernization, leading to outdated procedures that do not adapt to current needs.
 - **Lack of Accountability:** Insufficient performance metrics and accountability structures result in complacency and reduced efficiency.
 - **Lack of Innovation:** Inertia can lead to a lack of innovation and adaptability, hindering the adoption of modern practices.
 - **Slow Decision-Making:** Rigid procedures and hierarchical structures can slow down decision-making, affecting timely implementation of policies.
- **Systemic Bottlenecks:**
 - **Overlapping Jurisdictions:** Multiple agencies with overlapping responsibilities create confusion and delays in decision-making.
 - **Red Tape and Procedural Delays:** Complex and lengthy procedures hinder prompt service delivery and responsiveness.
 - **Inefficient Processes:** Outdated or complex processes can lead to inefficiencies and increased time to complete tasks.
 - **Resource Constraints:** Limited resources or inadequate infrastructure can exacerbate bottlenecks and impede effective service delivery.

Impact on Governance and Service Delivery:

- **Delayed Policy Implementation:** Inertia and bottlenecks slow down the rollout of policies and reforms, affecting governance effectiveness.
- **Reduced Public Trust:** Inefficiencies and lack of responsiveness erode public trust in the government's ability to deliver services effectively.
- **Inefficient Public Services:** Bottlenecks and inertia result in suboptimal service delivery, affecting the quality and timeliness of public services.
- **Increased Corruption:** Systemic issues often create opportunities for corruption and misuse of power.
- **Reduced Efficiency:** Delays and inefficiencies can lead to slower implementation of policies and services, affecting the overall governance effectiveness.
- **Increased Costs:** Inefficiencies and delays can result in increased operational costs and waste of resources.

Measures to governance and service delivery:

- **Promote Innovation:** Encourage the adoption of new technologies and methods through incentives and training.
- **Enhance Accountability:** Establish clear performance metrics and introduce a feedback system and performance reviews to track efficiency.

- **Streamline Jurisdictions:** Simplify and clarify agency roles to reduce overlap and confusion.
- **Reduce Red Tape:** Simplify procedures and reduce bureaucracy through process re-engineering.
- **Expedite Policy Implementation:** Adopt agile project management techniques to speed up policy rollout.
- **Rebuild Public Trust:** Increase transparency and involve public feedback in governance processes.
- **Optimize Service Provision:** Implement efficient workflows and technology solutions for faster service.
- **Combat Corruption:** Introduce stricter controls and digital systems to minimize corruption.

By reforming processes, promoting innovation, managing resources effectively, and enhancing accountability, the Civil Service can overcome these challenges and deliver better governance and services to the public.

Q19: Enumerate the factors behind ongoing crisis in Bangladesh. While discussing the challenges for India, suggest ways for India to ensure continued cooperation with Bangladesh. (15 Marks, 250 Words)

Approach to the answer:

Introduction: Introduce in brief about ongoing crisis in Bangladesh.

Body: Address the demand of the question by highlighting factors behind ongoing crisis then mention the challenges.

Conclusion: Conclude with a summarizing the topic on a positive note.

Answer: Bangladesh has seen continuous student protest which resulted in resignation and departure of the incumbent PM Sheikh Hasina, violence that has killed more than 440 people and continued political uncertainty.

Factors behind ongoing crisis:

Immediate Factors: High Court reinstatement of 30% quota for the descendants of freedom fighters in public sector jobs at a time when unemployment is very high resulted in students coming out to the streets to protest for the removal of quotas.

Political Factor:

- The former Prime Minister has been accused of imprisonment of opposition parties and suppression of democracy.
- The largest opposition party 'Bangladesh Nationalist Party' did not participate in 2024 national elections.
- Sheikh Hasina government banned Jamaat-e-Islami because of its involvement in violent activities. BNP, JeI and other parties gave call for 'long March' which culminated in resignation of the Prime Minister.

Economic Factors:

- Covid-19 resulted in reduction in exports from Bangladesh. High energy prices led to inflation and high cost of living.
- Bangladesh has among the lowest wages across the world. Thus, common people continue to face hardship despite high economic growth in recent times.

Social factor: Bangladesh society has got radicalised in recent times, while Sheikh Hasina kept the radical elements at bay. This is evident in violence against minorities and their places of worship.

Challenges for India:

- **Economic impact:** Bangladesh is the largest trade partner of India in South Asia (Bilateral trade \$14 billion). Both sides have also started discussions for a Free Trade Agreement. The ongoing crisis might impact bilateral trade and economic relations.
- **Instability in the North-East:** Manipur is already unstable. As Bangladesh share borders with most of North-eastern states, instability can spill over to these states.
- **Refugee Crisis:** Violence against minorities in Bangladesh can result in refugee spillover to India as border between India and Bangladesh remain porous.
- **Security Challenges:** Taking advantage of the present crisis, radical elements in Bangladesh can target India.

- **Increased influence of China and Pakistan:** BNP has traditionally been closer to China and Pakistan. Ouster of Awami League and BNP in command may lead to increased influence of China and Pakistan.

Ways to ensure continued cooperation

- India needs to remain engaged with Bangladesh despite the change in regime and establishment of interim government.
- India should try to persuade Sheikh Hasina to quickly find alternate country for political asylum.
- Supporting and helping Bangladesh in conducting free and fair elections as quickly as possible.
- Strengthen border security and surveillance to prevent illegal movement of people from Bangladesh to India.

As the situation unfolds, both countries will need to navigate this transition carefully to maintain their positive trajectory of cooperation and friendship.

Q20: In light of the ongoing regional conflicts in the Middle East, what are the key challenges and opportunities for India in this region? (15 Marks, 250 Words)

Approach to the answer:

Introduction: Introduce in brief about crisis in Middle east.

Body: Address the demand of the question by highlighting factors various ongoing regional conflicts in the Middle East followed by associated challenges and opportunities.

Conclusion: Conclude with a summarizing the topic on a positive note.

Answer: The Middle East has been a region of persistent conflict, with ongoing regional disputes and wars involving various state and non-state actors. Presently, there are different conflict are going on the region involving different actors.

Regional conflicts in the Middle East

- **Israel-Hamas Conflict:** The conflict began as response by Israel to Hamas attack on Israel killing and kidnapping Israel citizens. The conflict has continued for more than 10 months with death of more than 40,000 people.
- **Assassination of Ismail Haniyeh in Iran:** Hamas leader Ismail Haniyeh was killed in a blast in Tehran for which Iran has blamed Israel and has vowed to take revenge.
- **Conflict between Saudi Arabia and Houthis** which has expanded to Houthis attack on commercial ships in the red Sea.
- **Israel's attack of Lebanon:** Israel has attacked South Lebanon villages as a response to attack by Hezbollah. Israel assassinated top Hezbollah commander Fouad Shukr.

Apart from this there are multiple latent conflict like between Saudi Arabia and Iran, Saudi Arabia-Qatar, conflict in Syria etc.

Challenges for India

- **Diplomatic Balancing:** India enjoys good relations with all nations in the middle east. The conflict and resultant humanitarian crisis might complicate the diplomatic balancing.
- **Complicate West Asian Geopolitics:** India has tried to expand its stake in the region through I2U2 initiative. The Israel-Hamas conflict has deteriorated the Israel-Arab relations and thus complicated India's initiatives in the region.
- **Energy Security:** India's energy security is heavily reliant on oil imports from West Asia, including countries like Saudi Arabia, UAE, and Iran. Instability in the region can impact oil prices and supply chains.
- **Security cooperation:** Defence cooperation with Israel includes procurement of advanced military technology, joint exercises, and intelligence sharing. The ongoing conflict might lead to delay in procurement and delivery.

- **New Projects:** India is a member of India-Middle east- Europe Corridor with Haifa port in Israel as an important link. The conflict can result in delay in implementation of the project.
- **Impact on Diaspora:** The large Indian diaspora in West Asia, particularly in GCC countries, is vulnerable to regional instability. Any escalation in conflict could affect their safety and employment.

Opportunities for India

- **Neutral Mediator:** India's neutral stance and its policy of non-interference in the internal affairs of other countries give it an opportunity to act as a mediator in regional disputes.
- **Energy Security:** India can capitalize on the shifting dynamics by securing long-term energy deals, diversifying its sources within the region, and investing in upstream oil and gas projects.
- **Defense Exports:** As the Middle East faces security challenges, India can expand its defense exports to the region, offering a range of military equipment and technology.
- The economic diversification efforts in Gulf countries, particularly in the UAE and Saudi Arabia, present opportunities for India in sectors like information technology, pharmaceuticals, renewable energy, education, and healthcare.

India should avoid taking sides in intra-regional disputes, while promoting dialogue and peaceful resolution of conflicts. India should engage more actively in regional forums like the Organization of Islamic Cooperation (OIC) and the Gulf Cooperation Council (GCC) and with other global powers, such as the United States, Russia, China, and the European Union, to address regional issues in the Middle East, ensuring that its interests are represented in broader international discussions.